In the second step, the government amended the legislation governing the elections to the Judicial Council, thus gaining a strong majority in it as well. It then did the same with the Supreme Court and with the reorganisation of the lower courts. Then, in 2016, the government merged the roles of public prosecutor and Minister of Justice. All this happened without the government changing the constitution, as was done in Hungary by Orbán, but rather by simply using the overwhelming majority in the parliament and consequently in the Constitutional Court.[155] Technically speaking then, the letter of the law has been followed – but so was the case in many authoritarian and even totalitarian systems in history, the critics were saying.

The parliamentary super-majority of the Law and Justice party was the principal vehicle through which the entire law-making process was carried out with lightning speed. The government also intervened in the legislation governing the recruitment of civil servants,[156] thus allowing for political appointments there too. So-called Polonisation of the media followed: about 200 journalists on public TV were fired[157] and replaced by right-wing journalists. The government also launched an initiative to re-Polonise private media with the aim of snatching them from foreign hands, especially from German media companies. Amendments to the legislation governing demonstrations were also adopted that made such gatherings more difficult to organise.[158]

In response to all these moves by the Polish government, the European Commission in December 2017 initiated the so-called Article 7 procedure. (It was triggered for Hungary in September 2018.) Article 7 of the Treaty on the European Union envisages a possibility of suspension of certain rights of a member state, if found by four fifths of the Council to be at ‘clear risk of serious breach’ of the fundamental values of the EU. However, to date, the Council has never gone that far.

Interestingly, Sadurski does not see any special ideology behind the actions by the Polish government, not even a Catholic one. He believes that Jaroslaw Kaczyński – the grey eminence of current Polish political establishment, although a very religious man, who likes to play the card of Catholicism – will eventually get rid of the influence of the Church too. His ideology is said to be based on his conspiratory interpretation of the tragic plane crash in Russia’s Smolensk (on an official trip to Russia) in 2010,